



CHAPTER 2.

An Act to continue in force the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, as amended by subsequent Acts and subject to certain further amendments, and to amend section two of the Local Elections and Register of Electors (Temporary Provisions) Act, 1940. [16th December 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The principal Act shall have effect subject to the amendments set out in the Schedule to this Act, and, as so amended, shall continue in force until the thirty-first day of December, nineteen hundred and forty-four, and no longer, unless Parliament otherwise determines. Continuance with amendment of principal Act.

(2) In this Act the expression "the principal Act" means the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, as amended by the Local Elections and Register of Electors (Temporary Provisions) Act, 1940, the Local Elections and Register of Electors (Temporary Provisions) Act, 1941, and the Local Elections and Register of Electors (Temporary Provisions) Act, 1942. 2 & 3 Geo. 6. c. 115.
4 & 5 Geo. 6. c. 3.
4 & 5 Geo. 6. c. 49.
5 & 6 Geo. 6. c. 38.

2.—(1) For the purposes of section two of the Local Elections and Register of Electors (Temporary Provisions) Act, 1940 (which preserves the superannuation rights under the Local Government Superannuation Act, 1937, or the Local Government Superannuation (Scotland) Act, 1937, of a contributory employee or local Act contributor who by reason of the principal Act being in force is not required to do work as returning officer at a local Superannuation rights of contributory employees.
1 Edw. 8. & Geo. 6. c. 68.
1 Edw. 8. & Geo. 6. c. 69.

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6 & 7 Geo. 6.
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election, or in connection with the preparation of a register of electors or a jurors book), the question whether a person is not required to do any such work by reason only of the principal Act being in force shall be determined as if the Parliamentary Electors (War-Time Registration) Act, 1943, (hereafter in this section referred to as the Act of 1943) had not been passed and the amendments set out in the Schedule to this Act had not been made in the principal Act.

(2) A person otherwise entitled under the said section two to make contributions to a superannuation fund in respect of any year shall not be so entitled if he receives in respect of work done in that year by him under the Act of 1943 (otherwise than as part of an inclusive salary) remuneration greater than that in respect of which he would be entitled to make the contributions.

(3) Where a person makes a contribution under the said section two in respect of any year, he shall not be required or entitled to make in respect of that year any contribution under the Local Government Superannuation Act, 1937, or the Local Government Superannuation (Scotland) Act, 1937, in respect of the remuneration received by him (otherwise than as part of an inclusive salary) in respect of work done by him in that year under the Act of 1943, and the said remuneration shall be disregarded for the purpose of computing in accordance with the provisions of section eight of either of the said Acts of 1937 his average remuneration (if he is a contributory employee) or of calculating his superannuation allowance under a local Act scheme (if he is a local Act contributor).

(4) Expressions used in this section have the same meaning as in the said section two.

Short title.

3. This Act may be cited as the Local Elections and Register of Electors (Temporary Provisions) Act, 1943.

SCHEDULE

AMENDMENTS OF PRINCIPAL ACT.

Section 1.

Such of the provisions of the principal Act as are specified in the first column of this Schedule shall have effect subject to the amendments specified in the second column of this Schedule.

<u>Section.</u>	•	<u>Amendment.</u>
Section two	...	Subsection (3) shall be repealed in so far as it relates to the parliamentary register of electors, so, however, that the register therein referred to shall remain in force for the purpose of a parliamentary election initiated before the appointed day.
Section three	...	Subsection (4) shall be repealed. In subsection (1) the words "or a jurors book", and in subsection (2) the words "section eleven of the Parliamentary and Municipal Registration Act, 1878, and", shall be repealed.
Section six	...	After paragraph (e) of subsection (1) there shall be inserted the following paragraph :— " (ee) alter the apportionment of the councilors of an urban district council among the wards".
Section eight	...	In paragraph (d) the words "subsection (4) of section two" shall be repealed.
Section nine	...	Subsection (1) shall be repealed in so far as it relates to the parliamentary register of electors for the election of a member to serve in the Parliament of the United Kingdom, so, however, that the register therein referred to shall remain in force for the purpose of any such election initiated before the appointed day.

In this Schedule the expression "election initiated before the appointed day" has the same meaning as in the Parliamentary Electors (War-Time Registration) Act, 1943.